

Smt. Ningthoujam Ningol Ngasepam Ongbi ... vs Shri Ngasepam Hemchandra Singh on 13 June, 2022

Bench: Sanjay Kumar, Ahanthem Bimol Singh

KABORA Digitally signed
by
MBAM KABORAMBAM
SANDEEP SANDEEP SINGH

SINGH

Date: 2022.06.13
16:15:30 +05'30'

IN THE HIGH COURT OF MANIPUR
AT IMPHAL

Mat. App. No. 1 of 2019

Smt. Ningthoujam Ningol Ngasepam Ongbi Kamala @ Ashangbi
Devi, aged about 37 years, W/o Ngasepam Hemchandra Singh of
Joypur Khunou, Bishnupur Ward No. 10, P.O. & P.S. Bishnupur,
Bishnupur District, Manipur - 795126

-Versus-

Shri Ngasepam Hemchandra Singh, aged about 43 years,
S/o Late Ng. Mangijao Singh of Ngakchroupokpi Maning Leikai,
P.O. & P.S. Bishnupur, Bishnupur District, Manipur - 795126

Respo

BEFORE

HON'BLE THE CHIEF JUSTICE MR. SANJAY KUMAR
HON'BLE MR. JUSTICE AHANTHEM BIMOL SINGH

For the appellant	:	Mr. T. Rajendra, Advocate
For the respondent	:	Mr. Kh. Tomba, Advocate
Date of Judgment	:	13.06.2022

JUDGMENT (ORAL)

Sanjay Kumar (C.J.):

[1] By judgment dated 12.10.2018, the Family Court, Bishnupur, decreed Matrimonial (Divorce) Suit No. 65 of 2016/20/2017 filed by Ngasepam Hemchandra Singh, dissolving his marriage with Ningthoujam Ningol Ngasepam Ongbi Kamala @ Ashangbi Devi on the ground of cruelty, under Section 13 of the Hindu Marriage Act,

1955, subject to his paying permanent alimony of ₹ 7,00,000/- to her within 3 months from the date of the judgment.

Mat. App. No. 1 of 2019 Page 1 Aggrieved thereby, Ningthoujam Ningol Ngasepam Ongbi Kamala @ Ashangbi Devi filed this appeal under Section 19 of the Family Courts Act, 1984. [2] Heard Mr. T. Rajendra, learned counsel for the appellant; and Mr. Kh. Tomba, learned counsel for the respondent.

Parties shall hereinafter be referred to as 'the wife' and 'the husband' respectively.

[3] During the course of the hearing of this appeal, it came to light that the husband started living with another woman and has already sired a daughter with her. As there is no possibility of resumption of peaceful marital relations between the wife and the husband at this stage and as Mr. Kh. Tomba, learned counsel, made an offer that the husband would pay the balance permanent alimony of ₹ 6,00,000/-, which is still outstanding as on date, along with interest thereon @ 6% per annum, Mr. T. Rajendra, learned counsel, was asked to ascertain whether the wife would be satisfied with payment of the said amount along with interest. However, today, Mr. T. Rajendra, learned counsel, informed this Court that the wife is not agreeable to any such compromise.

The matter is therefore taken up for adjudication.

[4] As already noted supra, the husband failed to pay the permanent alimony amount of ₹ 7,00,000/- within the time stipulated by the Family Court, Bishnupur. Admittedly, he has only deposited a sum of ₹ 1,00,000/- with the Family Court, Bishnupur, till now.

Further, Mr. Kh. Tomba, learned counsel, would fairly concede that the husband did not even file any application before the Family Court, Bishnupur, seeking extension of time to pay the balance permanent alimony amount. He Mat. App. No. 1 of 2019 Page 2 would however argue that the husband did not make the payment owing to the amendment application filed by the wife in relation to the judgment under appeal. [5] Countering this argument, Mr. T. Rajendra, learned counsel, would point out that relevant documents in that regard have already been brought on record and contend that the filing of an amendment application had no role to play in the matter.

[6] This Court finds merit in the submission of Mr. T. Rajendra, learned counsel. It appears that Mat. Judl. Misc. Case. No. 49 of 2019 was filed by the wife in February, 2019, before the Family Court, Bishnupur, seeking amendment of the judgment under appeal. Therein, she stated that the husband had not paid the alimony amount but, on the other hand, he was trying to change the nominee ship in his service book by introducing the name of Sanabam Bhanumati Devi, with whom he had extramarital relations. That apart, she stated that the Family Court, Bishnupur, had

not taken note of the documents, marked by her as Exts. D/1 and D/2. These were the issues which she raised before the Family Court, Bishnupur. However, she then filed Mat. Judl. Misc. Case No. 65 of 2019 on 02.03.2019, stating that there were some formal defects in her amendment application and sought leave to withdraw the same. The Family Court, Bishnupur, passed an order on 02.03.2019 itself, permitting withdrawal of Mat. Judl. Misc. Case No. 49 of 2019.

[7] On a conspectus of the above facts, it is manifest that grant of the divorce decree on 12.10.2018 by the Family Court, Bishnupur, was subject to the payment of a total permanent alimony amount of ₹ 7,00,000/- to the wife within 3 months from that date, viz., by 12.01.2019. Admittedly, the husband failed to pay the amount, as directed, within that time frame. Even as on date, he claims Mat. App. No. 1 of 2019 Page 3 to have deposited only a sum of ₹ 1,00,000/- with the Family Court, Bishnupur.

The filing of an amendment application in February, 2019, by the wife, after the expiry of the stipulated time, does not come to the aid of the husband in so far as his failure to abide by the condition imposed by the Family Court, Bishnupur, is concerned. As the very grant of the divorce was subject to his paying the full amount within a time frame and as he admittedly failed to do so, the conditional divorce decree can no longer survive. It is not open to a litigant to accept that part of the judgment which is favourable to him and ignore that part which he deems adverse to his liking. Having failed to abide by the condition imposed by the Family Court, Bishnupur, the husband divested himself of the right to enjoy the conditional relief granted by the Family Court, Bishnupur.

The appeal is accordingly allowed on this short ground and the judgment and decree dated 12.10.2018 passed by the Family Court, Bishnupur, Manipur, in Matrimonial (Divorce) Suit No. 65 of 2016/20/2017 is set aside. In consequence, the appellant, Ningthoujam Ningol Ngasepam Ongbi Kamala @ Ashangbi Devi, shall continue to be the lawfully wedded wife of Ngasepam Hemchandra Singh, for all legal intendments and purposes.

In the circumstances, there shall be no order as to costs.

JUDGE
Sandeep

CHIEF JUSTICE